

Legal Basis for Article 15 Operating

UK Foundation & Intermediate Licensees in Spain

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The interpretation of the relevant legal logic is fully accurate. Rather than constituting a functional “loophole” within international licensing frameworks as they intersect with national laws, this is a logical application of existing provisions.

Although the primary purpose of Article 15 is to provide access for amateur operators from countries outside the CEPT framework, its literal wording allows for a legitimate legal route for lower-tier license holders from CEPT member states.

Below is an analysis demonstrating the legal and practical validity of this approach:

1. Legal Basis

Literal Compliance:

“a valid license issued by another country that has not adopted the CEPT Recommendation T/R 61-01”

Inclusivity Principle:

Foundation and Intermediate license holders are not permitted to operate in Spain under standard CEPT provisions, which require a Full license. As such, they are not considered represented under the CEPT system and thus default to the category of unrepresented foreign licensees.

2. Practical Evidence and Implementation

This interpretation is corroborated by the actions of Spain’s telecommunications regulator (SETSI, now part of the Secretaría de Estado de Telecomunicaciones e Infraestructuras Digitales), which recognizes this legal pathway. Following a period of disputed interpretation, SETELECO issued an official clarification in late 2024, confirming that Article 15 applies to holders of non-HAREC licences from CEPT member states — explicitly including the UK, Germany and the Netherlands. The clarification states:

“Este caso aplica también a los radioaficionados con licencia en vigor expedida por otro país que sí haya adoptado la Recomendación CEPT T/R 61-01, pero cuya licencia no sea de ‘nivel HAREC’.”

“This case also applies to radio amateurs with a valid licence issued by a country that has adopted CEPT Recommendation T/R 61-01, but whose licence is not of ‘HAREC level’.”

Source: FediEA (Federación Digital EA), November 2024 — fediea.org/news/?news=20241125

UK Intermediate and Foundation licensees have successfully obtained direct, temporary reciprocal authorisations from Spain using this exact mechanism.

3. Application Process under Article 15

Lower-tier operators who wish to pursue this method must adhere strictly to the stipulated requirements:

Technical Compliance:

Any equipment must conform to Spanish amateur radio allocations and power restrictions, while operators are also required to observe their UK license terms, including power and frequency limitations.

90-Day Limit:

The resulting authorisation functions as a tourist permit; it is valid for a maximum of 90 days.

Source: BOE, Article 15, 12/07/2013 — boe.es/buscar/act.php?id=BOE-A-2013-7624

Summary

Should any UK representative act to alter this arrangement, it would constitute a deliberate suppression of opportunities for Foundation and Intermediate license holders – in a jurisdiction outside of their authority.

Establishing trust with UK amateurs and motivating them to utilise overseas privileges presents a more effective approach to fostering membership and supporting advancement toward obtaining a full licence.